

Calendar Line # 7
Case Name Danielle Stanton vs Mehus Construction, Inc.
Case No. 24CV452024
Motion to Compel Further Response to Request for Production; Sanctions <u>I. BACKGROUND</u> This case stems from a construction defect allegation that Plaintiff Danielle Stanton asserted after hiring Defendant Mehus Construction Inc. (“Mehus”) to construct a new custom single family residence and garage in Los Gatos, California. On November 18, 2024, Plaintiff Stanton filed a Complaint alleging three causes of actions: (1) negligence against all Defendants; (2) breach of contract against Defendant Mehus; (3) and breach of warranty against Defendant Mehus. Defendants filed Answers, Cross-Complaints, and First Amended Cross-Complaint in this matter. Before the Court, is Defendant/Cross-Complainant Mehus’s motion to compel further responses for request for production of documents (“RFPD”), Nos. 42-52, set three and sanctions. The motion was filed on July 31, 2026 and accompanied by a proof of service indicating electronic service on plaintiff’s counsel and counsel for cross-defendants/cross complainants on that same day. Plaintiff opposes the motion to compel and filed timely opposition briefs on August 25, 2026. Defendant Mehus filed a reply brief on August 31, 2026. The Court has carefully reviewed the following: Defendant Mehus’s notice of motion to compel, memorandum of points and authorities (“MPA”); Declaration of Kiran S. Idrees and attached Exhibits A-F (totaling X pages); Mehus’s separate statement in support of the motion (totaling 31 pages); Plaintiff’s Opposition (totaling 21 pages); Declaration of Missy M. Cornejo and attached Exhibits 1-5 in support of Plaintiff’s Opposition (totaling 39 pages); Mehus’s Reply brief (totaling 14 pages); proofs of services; and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 2017.010: “Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” For discovery purposes, information is regarded as relevant “if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof.” (<i>City of Los Angeles v. Superior Court</i> (2017) 9 Cal.App.5th 272, 288). Where a party objects or responds inadequately to discovery requests, a motion lies to compel further responses, and that party has the burden to justify the objections or inadequate responses. (<i>Fairmont Ins. Co. v. Superior Court</i> (2000) 22 Cal.4th 245, 255; Code Civ. Proc., § 2031.310, subd. (a) [motion to compel further responses lies “[o]n receipt of a response to a demand for inspection”]). “A trial court’s determination of a motion to compel discovery is reviewed for abuse of discretion. However, when the facts asserted in support of and in opposition to the motion are in conflict, the trial court’s factual findings will be upheld if they are supported by substantial evidence.” (<i>Costco Wholesale Corp. v. Superior Court</i> (2009) 47 Cal.4th 725, 733). “The purpose of the discovery rules is to enhance the truth-seeking function of the litigation process and eliminate trial strategies that focus on gamesmanship and surprise. In other words, the discovery process is designed to make a trial less a game of

blindman’s bluff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent.” (*Juarez v. Boy Scouts of Am., Inc.* (2000) 81 Cal.App.4th 377, 389).

A. PROCEDURAL REQUIREMENTS

(1) Timeliness

Code of Civil Procedure section 2030.300, subdivision (c), provides that notice of a motion to compel further responses must be given within 45 days following the service of the verified response, or any supplemental verified response, or by a later date agreed-upon in writing, failing which the propounding party waives any right to compel a further response to the interrogatories. (Code Civ. Proc., § 2030.300, subd. (c); but see *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 134-136 [suggesting that the 45-day deadline does not apply to (i.e., it does not begin to run with service of) objections-only responses; it only applies to responses that are required to be verified]).

The 45-day deadline “is ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.” (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410).

“Any period of notice, or any right or duty to do any act or make any response within any period or on a date certain after the service of the document, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two court days[.]” (Code Civ. Proc., § 1010.6, subd. (a)(3)(B)).

(2) Meet-and-Confer

“A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2030.300, subd. (b)(1)). “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040).

(3) Separate Statement

California Rules of Court, rule 3.1345 requires that any motion involving the content of discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for why an order compelling further responses is warranted.

B. MOTION TO COMPEL FURTHER RESPONSES TO RFPD

Pursuant to Code of Civil Procedure section 2031.260, a party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260, subd.(a)). If a party to whom requests for production of documents are directed does not provide timely responses, the requesting party may move for an order compelling response to the demand. (*Id.*, § 2031.300, subd. (b)). There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (*See Id.*, § 2031.300; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411). Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1)). In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2031.300, subd. (a)).

Code of Civil Procedure section 2031.310(b)(1) sets forth that a motion to compel further responses to a demand for inspection or production of documents may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmerited or overly generalized objections. A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (Code Civ. Proc., § 2031.310(b)(1)). In *Digital Music News LLC v Superior Court* (2014) 226 Cal.App.4th 216 at 224, the Court defined “good cause” as a showing that there “a disputed fact that is of

consequence in the action and the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.” If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (*Kirkland v. Sup.Ct.* (2002) 95 Cal. App.4th 92, 98). “In addition to the demands for inspection, copying, testing, or sampling permitted by this chapter, a party may propound a supplemental demand to inspect, copy, test, or sample any later acquired or discovered documents, tangible things, land or other property, or electronically stored information in the possession, custody, or control of the party on whom the demand is made.” (Code Civ. Proc., § 2031.050, subd. (a)).

Code of Civil Procedure section 2031.280, subdivision (a) provides that: “Any documents or category of documents produced in response to a demand for inspection, copying, testing, or sampling shall be identified with the specific request number to which the documents respond.” (Code of Civ. Proc., §2031.280(a); *Pollock v. Superior Court (Schuster)* (2023) 93 Cal.App.5th 1358-1352 ([“Section 2031.280 prescribes the form in which items must be produced. As newly amended, it requires that a document be identified with the specific request number to which it pertains . . .”])).

III. ANALYSIS

Defendant/Cross-Complainant Mehus’s motion to compel further responses for request for production of documents (“RFPD”), Nos. 42-52, set three and sanctions.

As an initial matter, the Court analyses the procedural requirements. First, Defendant Mehus asserts that the motion as timely as its RFPD, set three were served on June 10, 2026, and the Plaintiff served verified responses on July 13, 2026. (Declaration of Idrees (“Idrees Decl.”), ¶¶ 8-11; Exhibit C and I). Defendant filed the notice of motion to compel further responses was served within 45 days following receipt of verified response in compliance with Code of Civil Procedure section 2031.310. Second, Defendant Mehus’s counsel submitted a meet and confer declaration in support of the motion stating that reasonable and good faith efforts were made to resolve the matter informally in compliance with Code of Civil Procedure section 2016.040 and 2030.300(b)(1) for several months and again on July 16, 2026. (Idrees Decl., ¶¶ 12-15; Exhibit F). The Court notes that Plaintiff disputes that Defendant failed to expressly raise defense’s failure to cite 2031.310 as the basis of the motion, but correspondence between the party demonstrates an issue regarding organizational responses. Finally, the defendant filed a separate statement in accordance with California Rules of Court, rule 3.1345. The Court notes the Plaintiff opposes the responses defense provided to some of the separate statements. The Court finds that the procedural requirements have been satisfied and will consider the merits of the motion.

Defendant Mehus propounded RFPD, set three on Plaintiff on June 10, 2026. (Idrees Decl., ¶8; Exh. C). Plaintiff served verified responses on July 13, 2026. (*Id.*, at ¶ 11). What remains at issue is RFPD, Nos. 42-52. Defendant Mehus argues that the discovery was narrowly tailored to the documents support Plaintiff’s construction defect allegations, breach of contract claim, and damages. (*Id.*, at ¶ 8). Defense asserts that Plaintiff produced approximately 2,066 pages of documents, but could not identify documents supporting Plaintiff’s allegations in the Complaint. (*Id.*, at ¶ 10).

In opposition, Plaintiff asserts that on July 13, 2026, Plaintiff served verified code-compliant responses to Defendant Mehus’s RFPD, set three. (Cornejo Declaration (“Decl. Cornejo”), ¶ 3; Exhibit 3). Plaintiff avers that the responses were unambiguously numbered 1 through 11 tracked demands for response no. 1 quotes demand no. 42; and response no. 11 quotes demand no. 52, and defendant never claimed confusion prior to filing its motion. (Opposition, p. 3). As to Nos. 50 and 51, Plaintiff objected on vagueness, ambiguity, overbreadth, relevance, expert discovery, and attorney-client privilege or work-product doctrine. (Decl. Cornejo, ¶ 4). Plaintiff also asserts that defense failed to meet and confer about the underlying issue in this motion, which is the organization requirements under section 2031.280(a). (Opposition, p. 3). Rather, defense raised substantive objections, which the Plaintiff

responded to regarding the request to identify and produce, rather than organize responses. (*Id.*, at p. 4). Plaintiff seeks to have the motion denied based on defense's failure to specifically meet and confer about section 2031.280(a) requirements. (*Id.*; Cornejo Dec., ¶ 10-11). Plaintiff also asserts that Defendant's separate statement does not comply with Rules of Court, rule 3.1345 as it misstates responses, including that No. 52, representing Plaintiff filed "no response," which Plaintiff denies. (Opposition, at p. 6-9; Cornejo Dec., ¶ 12). Next, Plaintiff challenges defense's representation of the *Pollack* case and asserts that the court does not require a party to prepare Bates number cross-reference table to responses for RFPD. (*Id.*, at p. 10-11). Plaintiff also asserts that defense attempts to improperly obtain contention discovery, which must be obtained through interrogatories. (*Id.*, at p. 11-12). Plaintiff asserts that Plaintiff improperly seeks documents that have already been produced, including No. 42 – the June 1, 28, 2018 contact, which Plaintiff proceed in response to RFPD, No.7, set one and asserts duplicative discovery is barred. Further, Plaintiff challenges Nos 50-51 as work product. (*Id.*, p. 12-13). Finally, Plaintiff asserts that defense admits that portions of the motion are moot based on its July 16, 2026 letter, regarding Nos. 42, 43, and 48. (*Id.*, p. 17).

In its reply brief, Defendant Mehus argues that Plaintiff concedes that section 2031.280(a) requires a party to identifying documents by request numbers in response to RFPD. Defense argues that simply Bates labeling without identification to the request as to which document responds does not satisfy Plaintiff's requirements under section 2031.280(a) and the standard set forth in *Pollack v. Superior Court (Schuster)*, *supra*, 93 Cal.App.5th 1348. (Reply, p. 3-4). Defense argues that Plaintiff cannot evade the organizational requirement set forth in section 2031.280(a) by simply providing that the documents have been or would be produced under section 2031.310(a). (*Id.*). Defense argues that *Pollack* does not require bates stamping, but requires that documents produced in responses to a RFPD identify the specific request to which it applies. (*Pollack v. Superior Court (Schuster)*, *supra*, 93 Cal.App.5th at 1359). Defense also argues that any substantive objections Plaintiff lodges does not excuse noncompliance with section 2031.280(a). (Reply, p. 6). Defense asserts it is not seeking further substantive responses identifying facts, witnesses, or writing which Plaintiff basis its legal contention, or identification of which documents that Plaintiff finds persuasive, or seeking cumulative or duplicative requests, but simply demanding that Plaintiff identify which documents were produced in response to RFPD, Nos. 42-52, set three. (*Id.*, p. 6-7).

The Court finds the July 16, 2026 meet and confer communication regarding the RFPD, set three relevant, specially, on page 4, defense states:

"In addition, Plaintiff's document production was produced without Bates numbering. We appreciate that locating documents within a production of that size can be challenging. To the extent Plaintiff's review of the foregoing request or this correspondence causes counsel to identify additional responsive documents that were inadvertently omitted or previously overlooked, Defendant welcomes a supplemental production. Defendant's objective is simply to ensure that the parties are proceeding with a completed production before judicial intervention becomes necessary." (Exhibit 1 to Decl. Cornejo).

The Court notes that, Plaintiff's counsel responded on that same day and responded, on page 2, "Your letter states that Plaintiff's production as made "without Bates numbering." That is incorrect. All documents produced by Plaintiff via Dropbox, both in her prior productions and in this production accompanying her responses to the Third Set, were Bates-labeled. The premise that Plaintiff produced documents without Bates numbers is simply mistaken." (Exhibit 2 to Decl. Cornejo).

The Court finds that while the meet and confer letter does not directly state section 2031.280, it does identify the organizational issues as to the responses. The outstanding issue is compliance with section 2031.280 and not the substance. "Section 2031.280 prescribes the form in which items must be produced. As recently amended, it requires that a document "be identified with the specific request number to which the documents respond." (*Id.* at

subd. (a)). This replaces the prior requirement that documents “either be produced as they are kept in the usual course of business, or be organized and labeled to correspond with the categories in the demand.” (Former § 2031.280, subd. (a)). There is no requirement that a response identify a document with the specific request to which the document applies. There is no requirement that a document production be verified, nor that documents be Bates labeled.” *Pollack v. Superior Court (Schuster)*, *supra*, 93 Cal.App.5th at 1352. Thus, the Court does grant the motion to compel RFPD, Nos. 42-52 to be compliant with section 2031.280.

IV. SANCTIONS

Code of Civil Procedure section 2031.310, subdivision (h), provides, in pertinent part, that “the court ***shall*** impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, ***unless*** it finds that the one subject to the sanction acted with ***substantial justification*** or that other circumstances make the imposition of the sanction ***unjust***.” (emphasis added).

Here, both sides seek sanctions against each other.

Defendant Mehus seeks a total of \$3,960.00 in sanctions for pursuing this motion. Defense counsel seeks \$60.00 in costs for filing this motion. (*Id.*, at ¶ 17). Mehus’s counsel seeks a total of 15.6 hours tune at an hourly rate of \$250.00 which is comprised of the following: 8.8 hours for preparation and motion; 2.8 hours of preparation of separate statement; 1.0 hours of anticipated review of Defendant’s Opposition, 1.0 hours of anticipated preparation of a reply; and 2.0 hours of anticipated round-trip travel time for the hearing. (Idrees Decl., ¶¶ 18-20). Defense argues that Plaintiff cannot demonstrate substantial justification in opposing the motion and emphasizes that defense counsel over several months repeatedly identified the same organizational deficiency over three rounds of discovery. (Idrees Decl., ¶ 14-15; Defendant’s MPA, p. 16). Defense counsel emphasizes its repeated attempts to meet and confer with Plaintiff’s counsel. (Idrees Decl., ¶ 3-15; Exhibits A-I). Despite these efforts, Plaintiff’s counsel refused to provide bates-number cross references, index, or organizational guide to the 2,066 pages documents it produced and refused to take any remedial steps. (Defendant’s MPA, p.16-17; *see also*, *Pollack v. Superior Court (Schuster)*, *supra*, 93 Cal.App.5th 1348).

Plaintiff seeks a denial of the motion and defense’s request for sanctions, and seeks \$4,290.00 in sanctions for filing an opposition. (Opposition, p. 13-14). Plaintiff’s counsel asserts that substantial justification exists for opposing the motion based on defense’s misrepresentation of material facts in the separate statement and motion as well as failure to meet and confer about section 2031.280. (*Id.*). Plaintiff emphasizes that there is a discrepancy between the defense’s request for \$4,600.00 in its notice of motion and \$3,960.00 in the Declaration of Idree. (*Id.*, p. 14). Plaintiff’s counsel seeks attorney’s fees for 6.6 hours, which is comprised of 0.9 hours reviewing defense’s moving papers, 4.2 hours researching and filing an opposition, and 1.5 hours for anticipated costs of reviewing the reply brief and attending the hearing, at the hourly rate of \$650.00. (Cornejo Dec., ¶ ¶13-14).

In its reply, defense acknowledges the discrepancy, and seeks sanctions in the amount of \$3,960.00. (Reply, p. 11). Defense seeks that Plaintiff’s response is denied on the grounds that Plaintiff cannot establish substantial justification and that notice was proper. (*Id.*, p. 10).

Misuse of discovery includes, failure to comply with specified procedures and unsuccessfully opposing a motion to compel without substantial justification. To avoid sanctions, an unsuccessful opponent to the motion to compel may show “substantial justification” or the rational basis to conclude that the party’s failure to fulfill its discovery obligations were justified in law and fact. (*Doe v. United States Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1434; *Foothill Properties v. Lyon/Copley Corona Assocs.* (1996) 46 Cal.App.4th 1542, 1557).

Here, the Court notes that parties have engaged in at least three rounds of written discovery in a construction defect case and attempted to work out issues via correspondence. The voluminous records in this case are referenced by both sides and both sides in its correspondence discuss the need to avoid oversight on duplicate production. There are references to disagreements on organizational form requirements under section 2031.280, but plaintiff's challenge that it was raised specifically for the first time. In weighting these factors, the Court exercise its discretion in finding that there was not a misuse of discovery on the grounds that Plaintiff acted with substantial justification to oppose a discovery dispute. Although Plaintiff's Dropbox response exceeding 2,000 pages of discovery failed to comply with the requirements of section 2031.280 that documents be identified with the specific request which they apply, the mitigation is that Plaintiff's attempted some type of response to RFPD 42-52 and bates stamps and there was no specific response under section 2031.280 for Plaintiff to cure its response. Thus, the Court DENIES the request for sanctions by Defendant and Plaintiff.

V. CONCLUSION

Based on the foregoing, the motion to compel compliance with section 2031.280 to RFPD, Nos. 42-52, set three is GRANTED. Plaintiff is to produce 2031.280 compliant responses within twenty (20) days from this hearing.

The requests for sanctions by defendant and plaintiffs are DENIED.

The Court will prepare the formal Order.

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Calendar Line # 8
Case Name Juvenal Plancarte vs General Motors
Case No. 25CV467501
Motion to Compel Deposition Under Code of Civil Procedure Section 871.26; Sanctions <u>I. BACKGROUND</u> This case stems from a breach of warranty claim under the Song Beverly Act, regarding Plaintiff Juvenal Plancarte (“Plancarte”)’s December 20, 2022 purchase of 2022 Chevrolet Silverado 150 vehicle, vehicle identification number: 3GCNAAEK8NG679666 (“Subject Vehicle”) that was manufactured and or distributed by Defendant GM. (Complaint). On May 30, 2025, Plaintiff filed a Complaint alleging five causes of actions: (1) violation of Civil Code section 1793.2(D); (2) violation of Civil Code section 1793.2(B); (3) violation of Civil Code section 1793.2(A)(3); (4) breach of the implied warranty of merchantability under Civil Code sections 1791.1, 1794, and 1795.5; and (5) fraudulent inducement-concealment. (<i>Id.</i>). Defendant GM filed an Answer on February 23, 2026. Before the Court is Defendant GM’s motion to compel Plaintiff Plancarte’s deposition under Code of Civil Procedure section 871.26 and request for sanctions. Defendant filed the instant motion on January 30, 2026, and the motion was accompanied by a proof of service indicating electronic mail service on Plaintiff’s counsel on that same day. On August 13, 2026, Plaintiff filed an opposition brief. Defendant filed a reply brief on August 31, 2026. The Court has carefully reviewed the following: Defendant’s notice of motion, memorandum of points and authorities (“MPA”)(totaling 18 pages); Declaration of Kaitlyn Lasater and attached Exhibits A-D in support of the motion and sanctions (totaling 19 pages); Plaintiff’s opposition (totaling 6 pages); Declaration of Tyson Smith and attached Exhibits A-B in support of Plaintiff’s opposition (totaling 14 pages); Defendant’s Reply brief (totaling 6 pages); Declaration of Sanja Stark in support of the GM’s reply (totaling 4 pages) ; proofs of services; and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 871.26, subdivision (c): Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours of the following deponents: (1) The plaintiff. . . (Code of Civ. Proc., 871.26(c)(1)). The legislative intent behind Code of Civil Procedure section 871.26 was to streamline civil procedure associated with claims brought under the Song-Beverly Act by enforcing early exchange of discovery, including depositions within 120 days after filing of the answer or other responsive pleadings. (<i>Id.</i>; California Bill Analysis, A.B. 1755 Assem., 8/30/2024). <u>III. ANALYSIS</u> Defendant GM moves for an order compelling Plaintiff Plancarte to appear for a deposition and request for